

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING**

Complainants

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

Respondents

**COMPLAINANT’S EMERGENCY MOTION FOR ENLARGEMENT OF TIME
TO FILE REPLY TO RESPONDENTS’ REPLY BRIEF ON REMAND**

COMES NOW Sylvia Robledo d/b/a 81st Dolphin Parking (“Complainant”), by and through the undersigned, and hereby moves for an enlargement of time to reply to Respondents’ Reply Brief on Remand filed October 31, 2022 (“Respondent’s Brief in Response on Remand” or “Resp. Br. in Resp. on Remand”). Good cause exists to grant this motion for the reasons that follow:

1. On August 30, 2022, the Administrative Law Judge (“ALJ”) issued its Remand Reconsideration Scheduling Order (“RRSO”), establishing the briefing schedule for the parties to brief the limited issues on remand as permitted, delineated, and ordered by the

Federal Maritime Commission (“Commission” or “FMC”). The ALJ’s scheduling order provided as follows:

September 30, 2022 Complainant’s remand reconsideration brief with supplemental proposed findings of fact, and remand reconsideration appendix.

October 31, 2022 Respondent’s remand reconsideration opposition brief with responses to proposed supplemental findings of fact and proposed supplemental findings of fact, and remand reconsideration appendix.

November 15, 2022 Complainant’s remand reconsideration reply brief with responses to proposed supplemental findings of fact.

2. The ALJ’s scheduling order, along with the Commission’s June 2, 2022 Order Granting in Part and Denying in Part Petition for Reconsideration (“CCRO”) expressly limited the parties’ briefing, proposed findings of fact, and appendices to evidence that was already in the record. (CCRO at 16, RRSO at 2, 4).
3. On September 30, 2022, Complainant timely filed its Complainant 81st Dolphin’s Brief on Limited Reparations Issue on Remand, limiting its argument and evidence in conformity to the Commission’s and ALJ’s orders.
4. On October 31, 2022, Respondent The Board of Trustees of the Galveston Wharves (“Respondent”) filed its Respondents’ Reply Brief on Remand and, in contempt of the Commission’s and ALJ’s prior, clear orders, included evidence that is not in the record.
5. Contemporaneous with the filing of Respondent’s Brief in Response on Remand, Respondent filed Respondents’ Opposed Motion for Leave to Include Supplemental Records Regarding Decal Fees.
6. Presently, Complainant has less than two weeks to draft and file its reply brief with responses to the proposed supplemental findings of fact.

7. As a result of Respondent's unilateral expansion of the scope of the parties' permissible briefing, and the uncertainty as to whether the ALJ will grant Respondents' Opposed Motion for Leave to Include Supplemental Records Regarding Decal Fees, Complainant seeks an expansion of time with which to file its Reply in accordance with the ALJ's Remand Reconsideration Scheduling Order.
8. Because the ALJ's Remand Reconsideration Scheduling Order permitted fourteen days following Respondent's Brief in Response on Remand for Complainant to file its reply briefing, Complainant asks the ALJ to extend its deadline to file such reply to a date fourteen days following an order from the ALJ on Respondent's Opposed Motion for Leave.
9. Until an order on Respondent's Motion for Leave is entered, no clarity exists as to the bounds and limitations of the issues and evidence to be addressed in Complaint's reply and responses to Respondent's proposed findings of fact.
10. Based on the foregoing, good cause exists for enlargement of time to allow Complainant opportunity to reply and respond to those issues and evidence countenanced by the ALJ's anticipated order on Respondent's Motion for Leave.
11. Reasonable grounds exist for filing this motion, and same is not being sought as a dilatory tactic or for delay of this cause, but so that justice may be done.

Accordingly, Complainant respectfully requests that the deadline for Complainant to file its reply brief and responses to proposed supplemental findings of fact be extended until fourteen (14) days beyond the date of an order by the ALJ on Respondents' Opposed Motion for Leave to Include Supplemental Records Regarding Decal Fees.

Respectfully submitted,

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Sylvia Robledo d/b/a 81st Dolphin Parking**

CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this **1st day of November, 2022**, and that a true and correct copy of the foregoing was served on all counsel of record *via* certified mail – return receipt requested and/or email, as indicated below:

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